

2021 P L C 75

[Lahore High Court]

Before Jawad Hassan, J

Rana MUHAMMAD ILYAS

Versus

LAHORE ELECTRIC SUPPLY COMPANY and others

Writ Petition No.101836 of 2017, decided on 30th November, 2020.

(a) Punjab Industrial Relations Act (XIX of 2010)---

---S.33---Redressal of individual grievances---Limitation---Scope---Petitioner, after his release from jail on acquittal, approached the department through an application for restoration of his services, which were terminated on the basis of absence from duty---Petitioner, thereafter, served grievance notice to the department and later on filed grievance petition under S.33 of the Punjab Industrial Relations Act, 2010---Labour Court allowed the petition, however, Labour Appellate Tribunal declared the petition barred by limitation---Validity---Petitioner had to approach the Labour Court in case his application was not decided by the department, but he, instead of pursuing his matter, opted to seek directions from the High Court just to save his skin and to cover the bar of limitation---Petitioner fully knew factum of the institution of grievance petition before the Labour Court within the statutory period of limitation but he remained slept for years---Constitutional petition was dismissed, in circumstances.

Lahore Development Authority v. Mst. Sharifan Bibi and another PLD 2010 SC 705 rel.

(b) Equity---

---Law helps the vigilant and not the indolent.

Aftab Iqbal Khan Khichi and another v. Messrs United Distributors Pakistan Ltd. Karachi 1999 SCMR 1326 ref.

Naveed Khalid for Petitioner.

Mian Muhammad Javed for Respondent.

ORDER

JAWAD HASSAN, J.----Through this petition under Article 199 of the Constitution

of Islamic Republic of Pakistan, 1973 (the "Constitution"), the Petitioner seeks to set-aside the impugned judgment dated 11.10.2017 passed by the Punjab Labour Appellate Tribunal, Lahore (the "Tribunal") whereby appeal filed by the Respondents against the judgment dated 13.02.2017 passed by the Punjab Labour Court No.II, Lahore (PLC-II) was allowed.

2. Facts of the case, as per petition, are that the Petitioner was in the employment of the Respondents-LESCO and was arrested by the police on 12.10.2005 in a case F.I.R. No.220/2015 dated 20.08.2005 registered under Sections 3 and 5 of the Explosive Substances Act, 1908. He remained in jail till 28.11.2012 and was acquitted by the order of this Court passed in Criminal Appeal No.1705 of 2006 dated 19.11.2012. During this period, the Petitioner was removed from service on the basis of absence from duty. After his acquittal, he approached the Respondents with an application dated 11.12.2012 for restoration of his services. Upon no response from the Respondents, he approached this Court and sought direction for decision of his application by filing W.P. No.4646 of 2013. The said writ petition was disposed of on 27.02.2013 with direction to the Respondents to decide his application in accordance with law within a period of three weeks. The Petitioner was also directed to appear before the Respondent No.1 on 05.03.2013 at 11:00 A.M. A Criminal Original No.1180-W of 2013 was also filed for non-compliance of directions however, said petition was disposed of on 28.05.2015 wherein the Respondents submitted copy of order dated 09.09.2013. Thereafter, the Petitioner served a grievance notice to the Respondent No.1 on 25.08.2015 and later on filed Grievance Petition under Section 33 of the Punjab Industrial Relations Act, 2010 (the "Act") before the Punjab Labour Court No-II, Lahore. The said petition was allowed vide judgment dated 13.02.2017 which was assailed by the Respondents through appeal before the Tribunal and was allowed vide judgment dated 11.10.2017, hence this petition.

3. Learned counsel for the Petitioner inter-alia submitted that the impugned judgment is against the law and facts; that the impugned judgment is the result of mis-reading and non-reading of material available on record; that while passing the impugned judgment, the Tribunal totally ignored the fact that the Petitioner remained in jail till 28.11.2012 and his non-appearance from duty was not intentional as such the same is liable to be set-aside.

4. On the contrary learned counsel for the Respondents contested the arguments advanced by the learned counsel for the Petitioner and contended that the grievance notice served to the Respondents was time barred as such the Petitioner was not entitled to the relief claimed for. Learned counsel further argued that instant petition is liable to be dismissed as there is no illegality or infirmity in the impugned judgment.

5. I have heard the arguments of learned counsel for the parties and have gone through the record.

6. The fact of arrest and acquittal of the Petitioner is not disputed by all hands. He, throughout the litigation, has taken the sole stance that he, after his acquittal, approached the Respondents for restoration of service by filing an application dated 11.12.2012 and non-decision of the same prompted him to approach this Court for seeking direction. He has also taken the ground that the Respondents produced order dated 09.09.2013 on 28.07.2015

during proceedings of Criminal Original on 28.07.2015 and thereafter, he served grievance notice to the Respondents and approached PLC-II. The abovesaid stance of the Petitioner is not believable because it evinces from the record that he approached the Respondents on 11.12.2012 with an application for restoration of service and instead of pursuing the same, opted to approach this Court and sought directions for decision of his application. It also reflects from the order dated 09.03.2013 that he did not put his appearance before the Respondents for hearing hence he also violated the directions issued by this Court in above mentioned writ petition. Section 33(4) of the Act provides mechanism for the redressal of grievance of the Petitioner. The said section is reproduced hereunder:

"If the employer fails to communicate a decision within the period specified in subsection (2) or subsection (3) or if the worker is dissatisfied with such decision, the worker or the shop steward may take the matter to the collective bargaining agent or the Labour Court"

7. From bare reading of above subsection it can safely be said that the Petitioner had to approach the Labour Court in case his application was not decided by the Respondents, but he instead of pursuing his matter opted to seek directions from this Court just to save his skin and to cover the bar of limitation. The Hon'ble Supreme Court of Pakistan in "Lahore Development Authority v. Mst. Sharifan Bibi and another" (PLD 2010 Supreme Court 705) held that "law of limitation could not be considered merely a formality and required to be observed being mandatory in nature. Purpose of law of limitation was to help vigilant and not the indolent. Helping hand might not be extended to a litigant having going into deep slumber, on having become forgetful of his rights. Concerned person had to be made aware of invasion of his interest and such awareness had to be ascertained as a matter of fact. Supreme Court declined to interfere with exercise of discretion regarding question of limitation by High Court and order passed by High Court was neither illegal nor unreasonable but well based and did not warrant interference". In the impugned judgment the Tribunal has rightly observed that:

"This Tribunal observed minutely the conduct of Respondent who despite knowledge of the fact that under Section 33 of PIRA, 2010 the Respondent was obliged to bring his grievance before the Labour Court within statutory period he remained slept for years".

It was further observed that:

"The Respondent even did not submit application to the appellant department for supply of copy order dated 09.09.2013 nor there is any evidence on the record that the Respondent made even a bona fide effort to be re-employed rather the Respondent had been playing jugglery with the appellant Department because there is no evidence on the file that the Respondent acted in a bona fide manner. The circumstance revealed from the record of this file proves that on each step the Respondent tried to force the appellant Department to bend before him instead of proceedings in accordance with law and to file his grievance petition within the period of limitation"

8. Furthermore, the Petitioner fully knew factum of the institution of grievance petition before the Labour Court within the statutory period of limitation but he remained slept for

years. The law helps the vigilant and not the indolent. Reliance is placed on "Aftab Iqbal Khan Khichi and another v. Messrs United Distributors Pakistan Ltd. Karachi" (1999 SCMR 1326).

9. In view of above discussion, I fully agree with the finding of the Appellate Tribunal which accepted the appeal and see no illegality or perversity in the impugned judgment which has been passed in line with the dictates of law and does not warrant any interference by this Court.

10. Resultantly, the instant petition, being bereft of any force, is accordingly dismissed.

SA/M-172/L

Petition dismissed.